

Template for Justification and Approval for Other Than Full and Open Competition

Completion Instructions: The Department of Health and Human Services (HHS) has established a standard template for the preparation of a J&A for Other Than Full and Open Competition. If this is an 8(a) set-aside, please note this form is not required unless the acquisition is valued (including all options) at greater than \$22 million. This template is NOT applicable for actions using simplified acquisition procedures (FAR Subpart 13.5), Federal Supply Schedule orders (FAR 8.4), or task or delivery orders subject to fair opportunity (FAR 16.505).

Tailor all aspects of this template to the individual acquisition. Consult FAR Subpart 6.3 for guidance.

Delete the blue italic portions of this document prior to signature. Do not include these instructions in the final document or contract file.

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION**

Acquisition Title:	Data Innovations Middleware Service and Maintenance agreement
Agency:	IHS
Acquisition Year:	2026
Author:	Toni Lafriniere

2. Description of Action:

Nature:	☐ New Requirement	☒ Follow-on Requirement	
	☐ Modification to Existing Purchase Order/Contract Number:		
Pricing:	☒ Firm-Fixed Price	☐ Time & Materials	☐ Cost
	☐ Other:		
Funds:	☐ OMA	☐ Other Funds:	

Name of Proposed Contractor(s):	Data Innovations
Street Address:	463 Mountain View Dr
City, State, Zip:	Colchester, VT 05446

3. Description of Services or Supplies:

Basis for Approval (FAR 6.303-1(d)):	☒ Individual Basis	☐ Class Basis
--------------------------------------	--	--------------------------------------

The total estimated value of the proposed action, including all options is \$	6949.80
---	---------

As applicable, briefly describe the services or supplies required to meet the agency's needs, including make & model number where appropriate. Include quantities of supplies or period of performance for services. Provide information for any options included. If the action is a modification to an existing contract, distinguish clearly between the work covered by the basic order and the work to be obtained by the proposed modification.

The Red Lake Service Unit (RLSU) provides healthcare services including Emergency Medical services, family practice, internal medicine, pediatrics, dental, optometry, physical/occupational therapy, lab/radiology with mammography and bone density, pharmacy, mental health services, nutrition/diabetic educator services, and contract health services. The laboratory at Red Lake services the entire facility. The purpose of this contract is to procure a service and maintenance agreement on the data innovations middleware system that is already in place.

B. Background

The Data Innovations (DI) middleware systems provides communication between the laboratory instrumentation and the electronic health record (RPMS). The current system has 8 information ports for communications on up to 8 instrumnets. Red Lake Hospital requires an agreement in place to service and maintain the current system

C. Scope

- The contractor will provide support and maintenance for the Data Innovation's equipment and software upon request to IHS/Red Lake Hospital Laboratory at 24760 Hospital DR. in Red Lake MN. 56671.
- Contractor will provide support with new instrument additions in laboratory that required interfacing with RPMS through Data Innovations equipment and software.
- Any Lab personnel that is having difficulty with the equipment and/or software may call, E-Mail, or access the web portal from 9:00 am to 8:00 pm. This is to be considered non-emergency support. For emergency support, the personnel may log in on the live instrument manager system, 24x7x365.
- Provide training to laboratory personnel on how to use, access and get support on DI equipment and software.
- Provide information for upgrading hardware as necessary

4. Authority and Rationale: Identify the statutory authority, FAR title and FAR citation permitting other than full and open competition. It may be one of the following most commonly used citations by the operating divisions of the Department of Health and Human Services (HHS), but other exceptions may apply per [FAR Subpart 6.3](#).

Actions other than simplified acquisition procedures (select only one and provide an explanation):

- ☒ [FAR 6.302-1](#): Only one responsible source and no other supplies or services will satisfy agency requirements, 41 U.S.C. 3304(a)(1)

Explain why the intended contractor is the only responsible source who can provide the required supplies or services. Discuss the unique capabilities, expertise, etc. that support the lack of competition/why no other type of supplies or services will satisfy agency requirements. Explain factors/unique qualifications such as proprietary data or exclusive licensing rights, if applicable. If brand name, explain why an adequate purchase description or other information suitable to solicit by full and open competition has not been developed or are not available. If in connection with a follow-on contract for continued development or production of highly specialized equipment, detail the substantial duplication of cost or unacceptable delays.

The software is proprietary and no other company can service it. It is also the only middleware on the market that can operate with the RPMS system

- ☒ [FAR 6.302-2](#): Unusual and compelling urgency, 41 U.S.C. 3304(a)(2)

If unusual and compelling urgency is the basis for the justification, explain the chronological events leading up to the requirement and explain why time constraints cannot permit even a limited competition. Establish that the action will cover only the minimum quantity or period of performance necessary; in most cases options are unacceptable when citing urgency. Describe impact of required delivery/performance date. Describe the detrimental effects/serious injury to the mission of the requiring activity or to the government, financial or otherwise, that will result if this justification is not approved and the product or service cannot be provided by the intended sole source contractor. Failure to plan for expiring funds is not a valid reason for citing this exception.

If the middleware is not available all interfacing of laboartory equipment will stop and staff would have to manually enter results, putting patients as unnecessary risk for potential medical error and increased cost due to staff time.

- ☐ [FAR 6.302-5](#): Authorized or Required by Statute, 41 U.S.C. 3304(a)(5)

Provide a citation to the statutory authorization and a brief description of its content, or identify the specified source or other agency.

- ☐ Other (See [FAR Subpart 6.3](#) for additional authority):

Provide a citation to the applicable section of FAR 6.3 and a full explanation to justify use of the exception.

5. Bridge Contracts:

For contract extensions or bridge contracts when a competitive follow-on is in the process of being developed, summarize history of current contract and explain the reasons for any delays in the acquisition. Include discussion of the milestones for the follow-on action; the milestones should be as efficient as possible. Discuss why it would be neither cost effective nor realistic to expect another contractor to perform during the brief interim period; include issues such as start-up costs, phase-in, transfer of GFP, recruitment and staffing, etc. If the action is because of a protest, provide a brief discussion of the protest including the date the protest was filed and the basis of the protest. Explain that the action will provide the minimum quantity or performance period.

6. Actions to Increase Competition:

Describe efforts made to compete the action, including whether a notice was or will be publicized as required by FAR Subpart 5.2 or which exception under FAR 5.202 applies. If a notice was publicized, discuss the number of written responses to the synopsis and the results of the assessment of the written responses. List sources, if any, that expressed, in writing, an interest in the acquisition. Provide rationale if interested sources were rejected. If applicable, state that no other sources have expressed interest, but all offers received shall be considered. Describe what actions will be taken to increase competition before subsequent acquisition of the supplies or services is required. You may state that an action is a one-time requirement, but if a similar requirement arises, every effort will be made to compete it to the maximum extent possible. If action is sole source because of proprietary data or licensing rights and there will be a continuing need for the requirement, there must be evidence that advanced planning has been initiated to overcome the barriers to competition, or there should be documentation to support an analysis that replacement costs/licensing purchase costs outweigh the benefits of competition. If the action is a contract extension or bridge, explain actions to compete the follow-on. If action is an urgent new requirement and a competitive follow-on is anticipated, explain that efforts are underway to facilitate a full and open competition.

No actions have been completed as there are no other options for this service

7. Market Research:

Describe the extent of the market research conducted to identify all qualified sources and the results thereof. "Market Research" is defined as those attempts you made to ascertain whether other qualified sources exist, and can include contact with knowledgeable experts regarding similar or duplicate requirements, contact with industry, results of a sources sought synopsis, or draft solicitations. Research of the marketplace may consist of written, electronic (i.e. email) telephonic, or world wide web inquiries. Lack of advanced planning is not an acceptable reason for the lack of market research, but true urgency may necessitate abbreviated market research that is limited to readily available historical and commercial information. If action is a contract extension or bridge contract, describe the market research efforts underway or completed for the follow-on.

due to the proprietary nature of the contract there are no other viable competitors to the contract

8. Procurement History:

Purchase order or contract number:

75H70524P00026

Was action competed?

☒ Yes

☒ No

If action was not competed, state the cited authority, summarize rationale, and describe the actions that were supposed to be taken to increase competition and the results thereof:

no other vendors are capable of the requirement

9. Additional Information to support the justification

If applicable, explain why technical packages or specifications to facilitate competition were not developed or available; describe actions taken to remedy the situation.

--

10. Technical / Requirements Certification: *By my signature below*, I certify that the supporting data under my review which is included in this J&A is accurate and complete.

<u>Program Manager</u>	
Name:	Toni Lafriniere
Position Title:	Laboratory Supervisor
Email address:	toni.lafriniere@ihs.gov
Phone:	218-679-0239

Program Manager Supervisor (or one level above Program Manager)

Name:	Jennifer Naiser
Position Title:	Clinical Director
Email address:	jennifer.naiser@ihs.gov
Signature	JENNIFER A. NAISER -S  Digitally signed by JENNIFER A. NAISER -S Date: 2026.03.12 11:49:56 -05'00'
Date:	

11. Fair and Reasonable Price Determination: As Contracting Officer, by my signature below, I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

Provide the basis for this determination, e.g., describe techniques to be used to determine fair and reasonable price (FAR Subpart 15.402), such as price analysis, cost analysis, cost realism. Per FAR Subpart 15.403-4(a)(1), the threshold for obtaining cost or pricing data is \$750,000.

--

12. Contracting Officer's Approval (Required for proposed contract not to exceed \$700,000 (value calculated including all options)): I hereby certify that this justification is accurate and complete to the best of my knowledge. I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Name:			Phone:	
Signature:	Jennifer L. Richardson -S  Digitally signed by Jennifer L. Richardson -S Date: 2026.03.12 14:43:17 -05'00'		Date:	

13. Legal Review:

All J&As equal to or greater than \$68 million must have a legal review from the General Law Division of the Office of the General Counsel prior to sending it to the Department.

--

14. OPDIV Competition Advocate Approval (Required for proposed contract over \$700,000 but not exceeding \$13.5 million value calculated including all options):

I have reviewed this justification and find that it adequately supports other than full and open competition.

Name:		Phone:	
Signature:		Date:	

15. Office of Small and Disadvantaged Business Utilization

I have reviewed this justification and find that it adequately supports other than full and open competition.

Name:		Phone:	
Signature:		Date:	

16. OPDIV HCA Approval (Required for proposed contract over \$13.5 million but not exceeding \$68 million value calculated including all options):

Name:		Phone:	
Signature:		Date:	

(The below approval paragraph is required if the cumulative contract value, including all options, equals or exceeds \$68 million.)

HHS Senior Procurement Executive (SPE) Approval

Based on the foregoing justification, I hereby approve the procurement of (state supplies/services being procured) on an other than full and open competition basis pursuant to the authority of (state the full statutory authority and FAR cite and title, consistent with paragraph 4, e.g. 41 U.S.C. 3304), as implemented by [FAR 6.301](#)), subject to the availability of funds, and provided that the services herein described have otherwise been authorized for acquisition.

Name:		Phone:	
Signature:		Date:	